

25STCV30393 25STCV30393

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F22%2F2026

Source SHA-256: ec1250ca27d514bc9013ff83fa3fdd6bf09c359d5e0b814f9f713f499824080e

Case Number: 25STCV30393 Hearing Date: July 22, 2026 Dept: 529

Fatima pacheco v.

nashat n. metri et al.

Motion for issue Sanctions

Date

of Hearing: July 22, 2026 Trial Date: April 12, 2027

Department: 529 Case

No.: 25STCV30393

Moving

Party: Plaintiff

Fatima Pacheco

Responding

Party: Defendant Nashat N. Metri

BACKGROUND

This action arises out of plaintiff's lease of an allegedly uninhabitable and unpermitted converted garage from defendants. On October 16, 2025, plaintiff Fatima Pacheco filed a complaint against defendants Nashat N. Metri, Ebtsam Metri, and Does 1-10, asserting eight causes of action:

1.

Negligence

2.

Breach of Implied Warranty of Habitability

3.

Unlawful and Unfair Business Practices or Acts

in Violation of Business and Professions Code § 17200 et seq.

4.

Intentional Misrepresentation

5.

Violation of California Civil Code § 1940.2

6.

Violation of California Civil Code § 789.3

7.

Violation of California Civil Code § 1942.4

8.

Violation of the Pasadena Fair and Equitable

Housing Charter Amendment (PMC § 1801 et seq.)

Plaintiff alleges that she entered into a verbal rental agreement to lease a converted garage from defendants in August 2024 for \$1,500 per month. (Compl., ¶¶ 11, 13.) Plaintiff alleges she relied on defendants' assurances that they would make all necessary repairs and improvements to the dilapidated structure to make it suitable for habitation. (Compl., ¶ 12.) However, upon moving in, plaintiff alleges she discovered the property was still unsafe and uninhabitable. (Compl., ¶ 14.)

On June 17, 2026, plaintiff filed the instant motion for issue sanctions based on defendant's alleged willful failure to comply with the court's Order dated March 25, 2026. On July 10, 2026, defendant filed a declaration in response to plaintiff's motion.

[TENTATIVE] RULING

1.

Plaintiff Fatima Pacheco's Motion for Issue

Sanctions is GRANTED in part. Plaintiff's request for issue sanctions is denied. Plaintiff's request for monetary sanctions in the amount of \$2,300.00 is granted.

ANALYSIS

Plaintiff

Fatima Pacheco moves the court for an order imposing sanctions against defendant Nashat N. Metri based on defendant's willful failure to obey the court's March 25, 2026 order compelling further verified responses, without objection, to Form Interrogatories – General, Set One, Nos. 15.1 and 17.1. Plaintiff seeks an order (1) prohibiting defendant from supporting his general denial and affirmative defenses and from introducing evidence to dispute the 24 Requests for Admission he denied; and (2) establishing the matters that were the subject of those denied Requests for Admission. Pursuant to Code of Civil Procedure section 2023.030, subdivision (a), plaintiff also seeks monetary sanctions against defendant in the amount of \$2,300.00.

Procedural

Violations

Though

defendant's declaration in response is not titled as an opposition to plaintiff's motion for sanctions, the court will exercise its discretion to treat it as such, just as the court may properly treat a motion based upon its purpose rather than its title when the title is incorrect.

(Sole

Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 187, 193; see also Glasser v. Glasser (1998) 64 Cal.App.4th 1004, 1008 n.3 ["Although not expressly labeled as filed in support of the opposition, the declaration is dated September 25, 1996, and hearing on the motion was set for October 9, 1996. From these facts, we deduce that it was filed in support of the opposition."].) Substance over form is the vital inquiry, and the court will consider the declaration by defendant filed July 10, 2026 as an opposition.

Legal

Standard

“Misuses

of the discovery process include, but are not limited to . . . Disobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010, subd. (g).) If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., §§ 2025.450, subd. (h) [depositions]; 2030.290, subd. (c) [interrogatories]; 2031.300, subd. (c) [demands for production of documents]; 2033.290, subd. (e) [requests for admission]).

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct . . .

(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.”

(Code
Civ. Proc., § 2023.030.)

An

express finding of willfulness is not required. (See, e.g., *Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 620 [“Here, the court issued the sanctions pursuant to section 2023.030, subdivisions (b) and (c). Neither provision requires willfulness, much less an express finding of such.”].) “In the context of sanctions against a party for willful refusal to furnish discovery, it has been held that the responding party has the burden of proving the lack of willfulness of his failure to perform.” (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.)

Discussion

On March

25, 2026, the court granted plaintiff's motion to compel further responses to plaintiff's Form Interrogatories – General, Set One, Nos. 15.1 and 17.1.

(Hermansen Decl., ¶¶ 3–4.) The Minute Order states: “The defendant has to provide discovery responses to plaintiffs' counsel within 30 days. Sanctions in the amount of \$1,725 are payable to the plaintiff within 45 days.” (Minute Order (03/25/2026), at p. 1.)

Metri

did not comply with the order, and on April 22, 2026, he filed a Motion for Reconsideration and to Vacate Sanctions. (Hermansen Declaration., ¶ 6.) On May 27, 2026, the court denied the motion for reconsideration and stated: “Defendant is ordered to comply with the March 25, 2026 Order.” (Minute Order (05/27/2026), at p. 2.) “As of the date of this declaration, Metri has served no further responses to Form Interrogatory Nos. 15.1 or 17.1, has paid none of the \$1,725 in court-ordered sanctions, and has not contacted my office. He has offered no explanation for his noncompliance.” (Hermansen Decl., ¶ 8.)

Thus,

defendant has not complied with two separate court orders, which constitutes misuse of the discovery process.

“Appellant's disobedience of the court's discovery order was an abuse of discovery for which the court was authorized to impose sanctions delineated in 2023, subdivision (b). Section 2023, subdivision (b) permits (1) a monetary sanction, (2) an issue sanction, (3) an evidence sanction, (4) a terminating sanction or (5) a contempt sanction.

Here the trial court imposed an issue sanction under section 2023, subdivision (b)(2) which provides, ‘[t]he court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.’

In choosing among its various options for imposing a discovery

sanction, a trial court exercises discretion, subject to reversal only for manifest abuse exceeding the bounds of reason.”

(Kuhns

v. State of California (1992) 8 Cal.App.4th 982, 988 [citations omitted].)

In his

declaration filed in response/opposition to the motion for issue sanctions, defendant explains that he was diagnosed with a traumatic brain injury and is still under the care of his treating physician at this time. (Metri Decl., ¶¶ 1–2.) Metri declares that he cannot meaningfully participate in court proceedings due to this injury. (Metri Decl., ¶ 3.) A letter from defendant Metri’s doctor is attached to the declaration, corroborating his claims of injury.

Given

defendant’s injuries, the court does not find that imposing issue sanctions at this time would be just. However, the court will issue monetary sanctions for defendant’s repeated violation of the court’s orders.

Plaintiff

requests monetary sanctions in the amount of \$2,300.00, which constitutes three hours of time spent preparing this motion and one hour to attend the hearing at an hourly rate of \$575. (Hermansen Decl., ¶ 14.) The court finds this amount reasonable.

CONCLUSION

1.

Plaintiff Fatima Pacheco’s Motion for Issue

Sanctions is GRANTED in part. Plaintiff’s request for issue sanctions is denied. Plaintiff’s request for monetary sanctions in the amount of \$2,300.00 is granted. Monetary sanctions are payable within 30 days.